Minutes of the Meeting of the Council of the Corporation of the Town of Ajax Held in the Council Chambers of the Town Hall on Monday, March 25, 2019 at 7:00 p.m.

Alternative formats available upon request by contacting:
accessibility@ajax.ca *or 905-619-2529 ext. 3347*

Present:	Mayor	S. Collier
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	R. Tyler Morin
		A. Khan
		L. Bower

1. Call to Order

Mayor Collier called the meeting to order at 7:00 p.m. and acknowledged traditional treaty lands.

2. Disclosure of Pecuniary Interest

Councillor Bower declared a pecuniary interest with respect to Item 6.2 'General Government Committee Operating Budget Report', as a family member is employed by the Town of Ajax in the Recreation, Culture and Community Development Department aquatics section.

Mayor Collier declared a pecuniary interest with respect to Item 6.2 'General Government Committee Operating Budget Report', as a family member is employed by the Town of Ajax in the Recreation, Culture and Community Development Department aquatics section.

Mayor Collier declared a pecuniary interest with respect to item 6.4.2 'Authorizing Resolutions Related to Veridian & Whitby Hydro Merge', as he serves on the board of Veridian and the new Elexicon corporation and the agenda item pertains to director compensation which would affect him personally.

3. Adoption of Minutes

3.1 Strategic Planning Meeting – February 20-21, 2019

Moved by: A. Khan
Seconded by: L. Bower

That the Minutes of the Strategic Planning Meeting of Council held on February 20 & 21, 2019 be adopted.

CARRIED

3.2 Regular Meeting – February 25, 2019

Moved by: L. Bower
Seconded by: M. Crawford

That the Minutes of the regular meeting of Council held on February 25, 2019 be adopted.

CARRIED

4. Delegation and Petitions/Public Hearings

4.1 Ajax FC 2004 Girls Red Soccer Team 2019 Ontario Indoor Cup Provincial Champions

Mayor Collier introduced the Ajax FC Girls Red Soccer Team and reviewed their successes throughout the 2018 and 2019 seasons. Mayor Collier congratulated the team and their coaching staff on their recent 2019 Ontario Indoor Cup Under-16 Provincial Soccer Championship victory and presented the team with a congratulatory certificate.

4.2 Tourism Matters

Chuck Thibeault, Executive Director, Central Counties Tourism, and Brandon Pickard, Manager of Tourism, Durham Tourism, provided a presentation regarding tourism matters in Durham and the central counties area. Mr. Thibeault reviewed the Central Counties Tourism framework and discussed tourism within Ontario, tourism activity with Durham Region, strategies and resources to promote tourism within Ajax, and resources available to municipalities to promote local tourism.

Council members asked questions regarding Ajax's tourism assets, encouraging cycling tourism, and new technologies to promote tourism. Nadia Sukovski, Senior Economic Development Officer, reviewed Ajax's significant tourism attractions. Mr. Pickard discussed innovative developments in cycling tourism and use of mobile apps to promote local businesses. Council members thanked Mr. Thibeault and Mr. Pickard for their presentation.

4.3 Business Advisory Centre Durham - Activity Update

Teresa Shaver, Executive Director, Business Advisory Centre Durham (BACD), provided a presentation regarding the services and supports provided by BACD to small businesses and entrepreneurs in Durham. Ms. Shaver discussed the organization's vision, mission and values, business model, key metrics for Durham and Ajax, top industries and clients, business training and programs, partnerships, and events and activities for small business owners and entrepreneurs.

Council members asked questions regarding services provided to Ajax businesses, industries seeking assistance, and how Council may support BACD in their mission. Ms. Shaver reviewed services provided to Ajax businesses and discussed provincial funding sources for the not-for-profit organization. Council members thanked Ms. Shaver for her presentation and continued support for local businesses and entrepreneurs in Ajax.

4.4 2019 Ajax-Pickering Board of Trade Plans and Priorities

Christine Ashton, President, Ajax-Pickering Board of Trade (APBOT), provided a presentation regarding the board's 2019 plans and priorities. Ms. Ashton discussed the history of the organization, 2018 highlights, staff and volunteers, events, connections, community support, advocacy, 2019 plans and priorities, and partnership with the Town.

Council members asked questions regarding APBOT's position on the proposed airport in Pickering. Ms. Ashton reviewed APBOT's advocacy on the proposed airport and noted their continued support for the project and discussions with provincial and federal governments on the matter. Council members thanked Ms. Ashton for her presentation and APBOT's continued support for local businesses in Ajax.

4.5 PARA Marine Search and Rescue - 2018 Year in Review and 2019 Strategic Plan

Colin Thomson, Commodore & Unit Leader, and Clint Scott, Community Outreach and Development Officer, provided a presentation regarding the PARA Marine Search & Rescue 2019-2021 Strategic Business Plan. Mr. Scott reviewed the organization's history and discussed 2018 highlights, historical taskings summary, strategic and business plan objectives, future goals, increasing community awareness, asset management, vessel replacement strategy, and a call to action to support the plan.

Council members asked questions regarding calls for assistance, preventative measures and safety messaging, vessel lifespans and future replacement costs, criteria to volunteer, and significant taskings in Ajax. Mr. Thompon reviewed PARA's activities along the Ajax waterfront and discussed public safety messaging, costs associated with ongoing maintenance, and future vessel replacement. Council members thanked Mr. Thomson and

Mr. Scott for their presentation. Mayor Collier proposed that a motion be brought forward to explore and develop a service level agreement with PARA.

Motion

Moved by: S. Collier
Seconded by: S. Lee

That staff be directed to enter into discussions with PARA to develop a draft service agreement for Council's consideration and report back to the General Government Committee in May.

CARRIED

Mayor Collier noted that some members of the public in attendance may wish to address Council on the 2019 operating budget before it is considered under item 6.2 of the agenda. It was proposed that section '11. Question Period' of the agenda be brought forward in the order of business to allow for questions.

Motion to Suspend the Rules of Procedure

Moved by: M. Crawford
Seconded by: S. Lee

That the rules of procedure be suspended in order to allow section '11. Question Period' of the agenda to be addressed next in the order of business.

CARRIED on 2/3rds

11. Question Period

Dane Record, Ajax resident, inquired about cost estimates for the Primary Care Outreach Program pilot discussed in the Regional Councillors' Reports. Regional Councillors Lee, Dies, and Mayor Collier reviewed the outcomes of the pilot program discussed at Regional Council and the estimated costs for the program. Mr. Record requested that Council discuss the matter further with local partners and organizations.

5. Correspondence

Councillor Bower requested that the following items be pulled for discussion:

iii) 'Region of Durham: Drafting a Streamlined By-law Regarding Recreational Cannabis Across Durham Region'; and
v) 'Region of Durham: City of Vancouver Single-Use Items Reduction Strategy'

Members discussed and noted their support for the two items of Correspondence from the Region of Durham.

Motion

Moved by: L. Bower
Seconded by: R. Tyler Morin

That item iii) of the Correspondence Report, 'Region of Durham: Drafting a Streamlined By-law Regarding Recreational Cannabis Across Durham Region', be endorsed by Council.

CARRIED

Motion

Moved by: L. Bower
Seconded by: M. Crawford

That item v) of the Correspondence Report, 'Region of Durham: City of Vancouver Single-Use Items Reduction Strategy', be endorsed by Council.

CARRIED

Moved by: M. Crawford
Seconded by: A. Khan

That the report dated March 25, 2019 containing Items of Correspondence be adopted.

CARRIED

6. Reports

6.1 Community Affairs & Planning Committee Report

None

6.2 General Government Committee Report

Operating Budget Meeting – March 4, 2019

Councillor Bower and Mayor Collier noted their declared pecuniary interests with respect to the 2019 operating budgets for 'Recreation, Culture & Community Development Facilities' and 'Recreation Programs & Active Living' and refrained from voting or commenting on those portions of the budget.

Members discussed the direction to staff from the March 4th GGC Operating Budget meeting to examine options and costs associated with increasing service levels for grass cutting and litter pickup.

Amendment

Moved by: J. Dies
Seconded by: S. Lee

That the 2019 Operating Budget be amended as follows:

- Page 35: Operations & Environmental Services – Environment Services
  - Increase by $25,000 for four additional litter picks on Regional and Town Boulevards
- Page 57: Staff Request – Environmental Services Worker
  - Increase by $12,100 to advance the start date of the new position to May 1st
- Page 66: NEPIs - Service Improvements – Operations
  - Increase by $57,600 to include two additional Seasonal staff for the period of April 29th to October 31st
- Page 70: Staff Request – Operations – Gardener
  - Increase by $15,900 to advance the start date of the position to May 1st

CARRIED

Members discussed the proposed allocation options for the contribution to the Lakeridge Health Ajax Pickering Hospital funded by slots revenues in the 2019 Operating Budget.

Motion

Moved by: A. Khan
Seconded by: J. Dies

That the $125,000 in Slots Revenue contribution allocated to the Lakeridge Health Ajax Pickering Hospital in the 2019 Operating Budget be directed towards the purchase of a Faxitron Corevision for the hospital.

CARRIED

Separated Motion: Recreation – Facilities & RPAL budgets

Councillor Bower and Mayor Collier refrained from voting on the following motion.

Moved by: S. Lee
Seconded by: M. Crawford

That the recommendation of the General Government Committee to approve the 2019 Budgets for Recreation, Culture & Community Development Facilities and Recreation Programs & Active Living be adopted.

CARRIED

Operating Budget Meeting – March 4, 2019

Moved by: S. Lee
Seconded by: M. Crawford

That the General Government Committee Operating Budget Report dated March 4, 2019, be adopted and the 2019 Operating Budget be approved as amended.

CARRIED

Regular Meeting – March 18, 2019

Moved by: L. Bower
Seconded by: J. Dies

That the General Government Committee Report dated March 18, 2019, be adopted.

CARRIED

6.3 Summary of Advisory Committee Activities

Moved by: R. Tyler Morin
Seconded by: S. Lee

That the Summary of Advisory Committee Activities dated March 25, 2019 be received for information, and that the recommendations contained therein be referred to staff where applicable.

CARRIED

6.4 Departmental Reports

6.4.1 2019 Report on Non-Cash Expenses as Required by Ontario regulation 284/09

Moved by: L. Bower
Seconded by: R. Tyler Morin

That the report on Excluded Non-Cash Expenses, as required by Ontario Regulation 284/09, be received for information.

CARRIED

6.4.2 Authorizing Resolutions Related to Veridian & Whitby Hydro Merger

Mayor Collier noted his declared pecuniary interest and refrained from voting on all motions pertaining to item 6.4.2.

Moved by: L. Bower
Seconded by: J. Dies

That the report titled 'Authorizing Resolutions Related to Veridian & Whitby Hydro Merger' be received for information.

CARRIED

Motion

Moved by: J. Dies
Seconded by: R. Tyler Morin

WHEREAS the Municipality is a party to a Merger Participation Agreement dated July 10, 2018 (the "**MPA**") with respect to the amalgamation (the "**Amalgamation**") of Whitby Hydro Energy Corporation and Veridian Corporation to form Elexicon Corporation ("**Merged Holdco**"), to which is attached a form of Unanimous Shareholder Agreement (the "**USA**") to be executed and come into force as at the date of the Amalgamation;

AND WHEREAS, under the USA the Municipality and the municipalities of ***Belleville, Clarington and Pickering*** may nominate certain Independent Directors (as defined below) of Merged Holdco following receipt of a recommendation by the board of directors of Veridian Corporation;

AND WHEREAS, the Municipality has received a recommendation from Veridian Corporation that **Ron Chatterton, Doug Parker, Jim Macpherson** and **Brian Mountford** (the "**Recommended Directors**") be nominated as Independent Directors of the Merged Holdco, and has received notice that ***Clarington*** has nominated **Brian Mountford** as an Independent Director;

AND WHEREAS, ***Belleville and Pickering*** have not yet nominated Independent Directors of Merged Holdco;

AND WHEREAS the USA defines an Independent Director in relation to a municipality, as an individual that, at the time of his or her appointment to a Board and throughout his or her term as a member of such Board is not: the Mayor of such municipality; a member of the municipal council of such municipality; a member of a "local board" (as defined in the *Municipal Act*, 2001) of such municipality; or an employee of such municipality or such local board;

AND WHEREAS Recommended Directors would, if elected, be Independent Directors and otherwise fulfill the requirements to be a directors of the Merged Holdco;

BE IT RESOLVED THAT:

1. The Municipality nominates the Recommended Directors to the Board of Directors of the Merged Holdco effective as at the date of the Amalgamation;

2. The Municipality nominates as Independent Directors such individuals as ***Belleville*** and ***Pickering*** shall duly nominate in accordance with the USA; and

3. The Mayor, Chief Administrative Officer, or other duly authorized representative, of the Municipality (the "Authorized Representative") is authorized and directed, for and in the name of and on behalf of the Municipality, to provide notice to the other parties to the MPA of these resolutions and to execute and deliver all such other agreements, amendments, instruments, certificates, resolutions and other documents, and to do all such other acts and things as the Authorized Representative may determine to be necessary or advisable in connection with the nomination of the Recommended Directors as set out in paragraph 1, the execution and delivery of any such agreement, amendment, instrument, certificate, resolution or other document or the doing of any such other act or thing by the Authorized Representative being conclusive evidence of such determination.

CARRIED

Motion

Moved by: R. Tyler Morin
Seconded by: L. Bower

WHEREAS The Corporation of the Town of Ajax (the "**Municipality**") is a party to a Merger Participation Agreement dated July 10, 2018 (the "**MPA**") with respect to the amalgamation (the "**Amalgamation**") of Whitby Hydro Energy Corporation and Veridian Corporation to form Elexicon Corporation ("**Merged Holdco**"), to which is attached a form of Unanimous Shareholder Agreement (the "**USA**") to be executed and come into force as at the date of the Amalgamation;

AND WHEREAS the USA provides that the initial board of Merged Holdco shall consist of six independent directors (each, an "**Independent Director**") and five directors that are the mayors of the municipal shareholders of the Merged Holdco or such mayor's designate;

AND WHEREAS the Municipality has received notice of such nominated Independent Directors and mayors or designates and wishes to elect such persons as directors of the Merged Holdco;

BE IT RESOLVED THAT:

1. The Municipality authorizes the Chief Administrative Officer of the Municipality or an individual designated by the Chief Administrative Officer as the legal representative of the Municipality (the "**Authorized Representative**") to elect the following persons as directors of Merged Holdco effective as of the date of the Amalgamation for an initial term as indicated:

- **Ron Chatteron** (Independent Director) to hold office for three (3) years
- **Doug Parker** (Independent Director) to hold office for three (3) years
- **Jim Macpherson** (Independent Director) to hold office for two (2) years
- **Brian Mountford** (Independent Director) to hold office for two (2) years
- **Patrick Neil** (Independent Director) to hold office for two (2) years
- **Lesley Rose** (Independent Director) to hold office for three (3) years
- **Shaun Collier** (Mayor, Town of Ajax) to hold office concurrent with municipal term of Mayor
- **Adrian Foster** (Mayor, Municipality of Clarington) to hold office concurrent with municipal term of Mayor
- **David Ryan** (Mayor, City of Pickering) to hold office concurrent with municipal term of Mayor
- **Don Mitchell** (Mayor, Town of Whitby) to hold office concurrent with municipal term of Mayor
- **Mitch Panciuk** (Mayor, City of Belleville) to hold office concurrent with municipal term of Mayor

2. The Municipality authorizes the Chief Administrative Officer of the Municipality or an individual designated by the Chief Administrative Officer as the legal representative of the Municipality to elect the following persons as directors of Merged Holdco effective as of the date of the Amalgamation:

   Such individuals as ***Belleville*** and ***Pickering*** shall duly nominate in accordance with the USA; and

3. The Authorized Representative is authorized and directed, for and in the name of and on behalf of the Municipality:

   a. to provide notice to the other parties to the MPA of these resolutions and to vote at a meeting of shareholders of Mergeco Holdco, to execute a written resolution of the shareholders of Mergeco Holdco, to execute and deliver all such other agreements, amendments, instruments, certificates, resolutions and other documents, and to do all such other acts and things as the Authorized Representative may determine to be necessary or advisable in connection with the election of the directors as set out in paragraphs 1 and 2, the execution and delivery of any such agreement, amendment, instrument, certificate, resolution or other document or the doing of any such other act or thing by the Authorized Representative being conclusive evidence of such determination; and

   b. to execute and deliver all such other agreements, amendments, instruments, certificates, resolutions and other documents, and to do all such other acts and things as the Authorized Representative may determine to be necessary or advisable in connection with the first shareholder meeting of Merged Holdco, including without limitation the election of the directors of the subsidiaries of Merged Holdco, setting the compensation of such directors and dealing with matters to be decided by the shareholders of Merged Holdco as contemplated in the MPA or USA, the execution and delivery of any such agreement, amendment, instrument, certificate, resolution or other document or the doing of any such other act or thing by the Authorized Representative being conclusive evidence of such determination.

CARRIED

7. Regional Councillors' Reports

Regional Councillors reviewed the contents of the written report and discussed matters brought before Regional Council and its committees. Mayor Collier discussed highlights of the proposed regional budget.

Moved by: S. Lee
Seconded by: R. Tyler Morin

That the Regional Councillors' Reports of March 25, 2019 be received for information.

CARRIED

8. Business Arising from Notice of Motion

8.1 Windrow Clearing

Councillor Khan and Regional Councillor Lee introduced the motion and discussed the need to understand the cost implications of implementing a windrow clearing program for Ajax residents.

Moved by: A. Khan
Seconded by: S. Lee

THAT staff be directed to examine the possibility of providing windrow clearing services as part of the Town's winter response program, and to report their findings to the appropriate committee of Council.

CARRIED

8.2 Riverside Drive Road Design

Regional Councillor Crawford and Councillor Tyler Morin introduced the motion and inquired about the timing of scheduled line painting and road work on Riverside Drive. Members inquired about alternative locations for a multi-use trail in the area. Catherine Bridgeman, Acting Director of Operations & Environmental Services, and Dave Meredith, Acting Director of Planning & Development Services, responded to questions from Council members.

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That staff be directed to investigate options to replace the proposed bike lane on Riverside Drive and report back to the appropriate Committee of Council in May of 2019, and that staff specifically examine and report on options that would permit parking on one side of the road.

CARRIED

Mayor Collier relinquished the Chair in order to introduce a motion regarding the Amendments to the Town's Flag Raising & Proclamation Policies. Deputy Mayor Crawford assumed the Chair.

8.3 Amendments to Flag Raising & Proclamation Policies

Mayor Collier introduced the motion and discussed events that have been recognized by the Ontario Provincial Legislature but do not fall within the Town's approval criteria. Members asked questions regarding the Town's approval criteria within the policies. Alexander Harras, Manager of Legislative Services / Acting Clerk, responded to questions from Council Members.

Moved by: S. Collier
Seconded by: J. Dies

THAT the Town's Operating Procedures for Flag Raisings and Proclamation Requests be amended as follows:

1. To allow flag raisings and proclamations for celebrations and commemorations recognized by the Ontario Provincial Legislature; and

2. To grant the Mayor and Chief Administrative Officer or their designate the authority to approve or deny requests for proclamations and flag raisings.

CARRIED

Mayor Collier resumed the Chair.

9. By-laws

Moved by: M. Crawford
Seconded by: R. Tyler Morin

That By-law number 18-2019 be read a first, second and third time and passed.

CARRIED

10. Notice of Motion

None

11. Question Period

Question Period was addressed earlier in the agenda.

12. New Business - Notices & Announcements

Members thanked staff for assisting with the vigil held in the Council Chambers on March 24th for the victims of the New Zealand shooting. Regional Councillor Lee and Councillor Khan noted the upcoming Ward 2 community meeting scheduled for March 28th at the Audley Recreation Centre, beginning at 6:30 p.m.

Mayor Collier noted the 'Live with Mayor Collier' community engagement event scheduled for March 27th in the Council Chambers, beginning at 7:00 p.m. Mayor Collier noted that he would be attending the Parks and Recreation Ontario conference to receive the Youth Friendly Community Award on behalf of the Town.

13. Confirming By-Law

Moved by: R. Tyler Morin
Seconded by: J. Dies

That By-law number 19-2019 being a by-law to confirm the proceedings of the Council of the Corporation of the Town of Ajax at its regular meeting held on March 25, 2019 be read a first, second and third time and passed.

CARRIED

14. Adjournment

Moved by: M. Crawford
Seconded by: S. Lee

That the March 25, 2019 meeting of the Council of the Town of Ajax be adjourned. (9:09 p.m.)

CARRIED

Mayor

Acting Clerk